

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
JAHMEL MONTAGUE,

Plaintiff,

- against -

THE CITY OF NEW YORK, P.O. LAWRENCE
and "JOHN DOES 1-5," identity
unknown,

Defendants.

-----X

To the above named defendant(s):

Index No.

Plaintiff designates
New York County as
place of trial.

The basis of the
venue is the
location of occurrence.

S U M M O N S

Plaintiff resides at:
115-63 204TH St.,
St. Albans, N.Y. 11412

County of Queens

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after service is complete if this summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgement will be taken against you by default for the relief demanded in the complaint.

Dated: Mineola, New York
February 12, 2024

JOEL SCHMELKIN
SCHMELKIN ASSOCIATES, P.C.
Attorneys for Plaintiff

JAHMEL MONTAGUE

Office & P.O. Address
344 Willis Avenue
Mineola, New York 11501
(212) 227-8865
(516) 696-8865

- The City of New York, 100 Church Street, New York, N.Y. 10007
- P.O. LAWRENCE, C/o NYPD, 1 Police Plaza, New York, NY 10007
- "JOHN DOES 1-5" identity unknown, C/o NYPD, 1 Police Plaza, NY, NY 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
JAHMEL MONTAGUE,

Index No.

Plaintiff,

- against -

VERIFIED COMPLAINT

THE CITY OF NEW YORK, P.O. LAWRENCE
and "JOHN DOES 1-5" identity unknown,

Defendants.

-----X

Plaintiff, **JAHMEL MONTAGUE**, complaining of the
defendants, by his attorneys, SCHMELKIN ASSOCIATES, P.C., hereby
sets forth and alleges, upon information and belief, as follows:

PRELIMINARY STATEMENT/IDENTIFICATION OF PARTIES

1. That, at all times hereinafter mentioned, and on
June 25, 2023, the plaintiff, **JAHMEL MONTAGUE**, was and still is a
resident of the County of New York, City and State of New York.

2. That, at all times hereinafter mentioned, and on
June 25, 2023, the defendant, **THE CITY OF NEW YORK**, (hereinafter
referred to as "**THE CITY**") was and still is a domestic municipal
corporation, duly organized and existing under and by virtue of
the laws of the State of New York.

3. That, at all times hereinafter mentioned, and on
June 25, 2023, the defendant, **P.O. LAWRENCE**, (hereinafter

referred to as "**LAWRENCE**"), was and still is a resident of the City and State of New York.

4. That, at all times hereinafter mentioned, and on June 25, 2023, the defendants, "**JOHN DOES 1-5**", the names being **fictitious and identity unknown**, (hereinafter referred to as "**DOES**"), were and still are residents of the City and State of New York.

5. That, at all times hereinafter mentioned and on June 25, 2023, the defendants **LAWRENCE**, was a police officer, and/or other agent, servant, and/or employee of the defendant, **THE CITY** and was working within the scope and course of his employment with the defendant, **THE CITY**.

6. That, at all times hereinafter mentioned and on June 25, 2023, the defendants **DOES**, were police officers, and/or other agents, servants, and/or employees of the defendant, **THE CITY** and were working within the scope and course of their employment with the defendant, **THE CITY**.

7. That, the plaintiff, **JAHMEL MONTAGUE**, has complied with all the conditions precedent to the commencement of the within action against the defendant, **THE CITY**; plaintiff's Notice of Claim was served on the defendant September 14, 2023, within ninety (90) days of the date that the within causes of action having been caused to accrue; that thirty (30) days have elapsed

and the claim remains unpaid and unadjusted; that, the plaintiff, **JAHMEL MONTAGUE**, testified at an oral examination pursuant to the General Municipal Law on January 30, 2024; and, that this action is being commenced herewith within one (1) year and ninety (90) days of the date that the within cause of action having been caused to accrue.

8. That, on June 25, 2023, the plaintiff had gone to a Pride Parade, with various friends in the County of New York, City and State of New York.

9. That, thereafter there came a time when he was, in the vicinity of the Hudson Yards Pier, in the County of New York, City and State of New York, and was on a public sidewalk thereat, wherein he saw the defendants push, assault and attack his friends.

10. That, thereafter, police officers, and/or other agents, servants and/or employee of the defendant and/or the defendants, including the defendant **LAWRENCE** had approached the plaintiff.

11. That, without probable cause, without reasonable cause, and without justification, the plaintiff was approached, grabbed and assaulted by the defendants herein.

12. That, without reasonable cause, without justification, and without probable cause, the plaintiff was

arrested, by the defendant(s), their agent(s), servant(s) and/or employee(s).

13. That, the plaintiff was taken to the 14th and 6th precincts, against his will.

14. That, at all times, wherein the plaintiff was under the custody and control of the defendants, he was cognizant of this fact, and did not consent to being detained by the defendant(s), their agent(s), servant(s) and/or employee(s).

15. That the plaintiff was never told why he was arrested or detained, nor told why he was held against his will.

16. That, the plaintiff was taken by the defendant(s), their agent(s), servant(s) and/or employee(s) to Central Booking, and never saw a judge, but was released.

17. That, the plaintiff was unlawfully and falsely, charged with various crimes, including obstruction of governmental administration, but the district attorney refused to prosecute.

18. That, the defendants owed a duty to the plaintiff, **JAHMEL MONTAGUE** under his Constitutional rights and had breached said duty; that as a result of the foregoing the defendants had violated and otherwise breached that duty; that as a direct and proximate result of that breach, the plaintiff, **JAHMEL MONTAGUE** was caused to sustain serious and severe personal injuries.

AS AND FOR A FIRST CAUSE OF ACTION

(Assault and Battery)

19. That, the plaintiff, **JAHMEL MONTAGUE** repeats,

reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 18 with the same force and effect as if hereinafter more fully set forth at length herein.

20. That, on June 25, 2023, the plaintiff, **JAHMEL MONTAGUE**, was assaulted/battered by the defendant, and/or defendants by and through their agents, servants and/or employees.

21. That, the plaintiff, **JAHMEL MONTAGUE**, was assaulted/battered without justification and without cause and without excuse.

22. That, the assault/battery took place on Pier 45/Hudson Yards Pier, in the County of New York, City and State of New York and other locations wherein the plaintiff, **JAHMEL MONTAGUE** was held against his will by the defendant and/or defendants, their agents, servants and/or employees.

23. That, at all times hereinafter mentioned and on June 25, 2023, and for sometime prior thereto, defendants, **LAWRENCE and DOES** were New York City police officers, and/or agents, servants and/or employees of **THE CITY**, working in the scope and course of their employment as New York City Police Officers, and were employed by the defendant, **THE CITY**.

24. That, the aforementioned assault and battery of the plaintiff, **JAHMEL MONTAGUE**, was carried out by police officers and/or other servants, agents and/or employees of the defendant, and/or defendants, while working within the scope and course of

the employment with the defendant **THE CITY**.

25. That, by reason of the foregoing, the plaintiff, **JAHMEL MONTAGUE**, was injured; was rendered sick, sore, lame and disabled; was and/or will be caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

26. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

27. That, by reason of the foregoing, the plaintiff, **JAHMEL MONTAGUE**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A SECOND CAUSE OF ACTION

(Negligent Hiring, Negligent
Training, Negligent
Retention and
Negligent Supervision)

28. That, the plaintiff, **JAHMEL MONTAGUE**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 27 with the same force and effect as if hereinafter more fully set forth at length herein.

29. That, all of the aforementioned acts, committed by

police officers, servants, and/or other employees of the defendant, **THE CITY**, were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or other employees of the defendant, **THE CITY**.

30. That the defendant, **THE CITY**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants and/or other employees, who were employed by the defendant, **THE CITY**.

31. That, all of the aforementioned acts, committed by the police officers, agents, servants and/or other employees of the defendant, **LAWRENCE** were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or other employees of the defendant, **THE CITY**.

32. That, all of the aforementioned acts, committed by the police officers, agents, servants and/or other employees of the defendants, **DOES** were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or other employees of the defendant, **THE CITY**.

33. That, the defendant, **THE CITY**, was additionally negligent, reckless and careless in the negligent hiring,

negligent retention, and negligent training of various police officers, agents, servants, and/or other employees, including, but not limited to defendant, **LAWRENCE**, who was employed by the defendant, **THE CITY**.

34. That, the defendant, **THE CITY**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants, and/or other employees, including, but not limited to defendants, **DOES**, who were employed by the defendant, **THE CITY**.

35. That, by reason of the foregoing, the plaintiff, **JAHMEL MONTAGUE** was injured; was rendered sick, sore, lame and disabled; was and/or will be caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

36. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

37. That, by reason of the foregoing, the plaintiff, **JAHMEL MONTAGUE** has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of

New York.

AS AND FOR A THIRD CAUSE OF ACTION

(False Arrest and
False Imprisonment)

38. That the plaintiff, **JAHMEL MONTAGUE**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 37 with the same force and effect as if hereinafter more fully set forth at length herein.

39. That, on June 25, 2023, the plaintiff, **JAHMEL MONTAGUE**, was caused to be falsely arrested and falsely imprisoned without probable cause.

40. That, the plaintiff, **JAHMEL MOTANGUE**, was arrested without an arrest warrant.

41. That, the false arrest/false imprisonment took place at the Hudson Yards Pier, in the County of New York, City and State of New York, and thereafter continuing at other locations wherein the plaintiff, **JAHMEL MONTAGUE** was held against his will by the defendant and/or defendants, their agents, servants and/or employees.

42. That, the aforementioned false arrest and false imprisonment of the plaintiff, **JAHMEL MONTAGUE**, was carried out by police officers and/or other servants, agents and/or employees of the defendant, **THE CITY**.

43. That, the aforementioned false arrest and false

imprisonment of the plaintiff, **JAHMEL MONTAGUE**, was carried out by defendant, **LAWRENCE**, and/or other servants, agents and/or employees of the defendant, **THE CITY**, while working within the scope and course of the employment with the defendant **THE CITY**.

44. That, the aforementioned false arrest and false imprisonment of the plaintiff, **JAHMEL MONTAGUE**, was carried out by defendants, **DOES**, and/or other servants, agents and/or employees of the defendant, **THE CITY**, while working within the scope and course of the employment with the defendant **THE CITY**.

45. That, by reason of the foregoing, the plaintiff, **JAHMEL MONTAGUE**, was injured; was rendered sick, sore, lame and disabled; was and/or will be caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

46. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions as well as the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

47. That, by reason of the foregoing, the plaintiff, **JAHMEL MONTAGUE**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A FOURTH CAUSE OF ACTION

(Violation of Fourth, Fifth and
Fourteenth Amendment Rights)

48. The plaintiff, **JAHMEL MONTAGUE**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 47, with the same force and effect as if hereinafter more fully set forth at length herein.

49. That the plaintiff, **JAHMEL MONTAGUE** did not commit any illegal act, nor did the individually named defendants have reason to believe he committed an unlawful act, either before or at the time he was falsely arrested and imprisoned, assaulted and battered, excessive force was used against him; maliciously prosecuted and deprived of his constitutional rights pursuant to the Fourth, Fifth and Fourteenth Amendments as set forth in the Constitution of the United States, particularly 42 U.S.C. §1983 and the Constitution of the State of New York.

50. That at all times hereinafter mentioned, the defendant, **LAWRENCE** was employed in his respective capacity by the defendant, **THE CITY** and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the defendant, **THE CITY**.

51. That at all times hereinafter mentioned, the defendants, **DOES**, were employed in their respective capacities by the defendant, **THE CITY** and were acting under the color of their official capacity and their acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the defendant, **THE CITY**.

52. Defendant, **LAWRENCE**, is being sued in his personal and official capacities for violation of plaintiff's constitutional rights pursuant to 42 USC, §1983. Although defendant, **LAWRENCE** knew or should have known of the fact that this pattern of conduct was carried out by their agents, servants and/or employees, the defendant, **THE CITY** has not taken any steps or made any efforts to halt this course of conduct, to make redress to the plaintiff or other citizens injured thereby, or to take any disciplinary action whatever against any of their employees or agents.

53. Defendants, **DOES**, are being sued in their personal and official capacities for violation of plaintiff's constitutional rights pursuant to 42 USC, §1983. Although defendants, **DOES** knew or should have known of the fact that this pattern of conduct was carried out by their agents, servants and/or employees, the defendant, **THE CITY** has not taken any steps or made any efforts to halt this course of conduct, to make redress to the plaintiff or other citizens injured thereby, or to

take any disciplinary action whatever against any of their employees or agents.

54. The unlawful and illegal conduct of the defendants, their agents, servants and/or employees and each of them, deprived plaintiff, **JAHMEL MONTAGUE** of the following rights, privileges and immunities secured to him by the Constitution of the United States and of the State of New York: The right of plaintiff, **JAHMEL MONTAGUE** to be secure in his person and effects against unreasonable search and seizure under the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States; the right of plaintiff, **JAHMEL MONTAGUE**, to be informed of the nature and cause of the accusation against him as secured to him under the Sixth and Fourteenth Amendments to the Constitution of the United States; and the right of plaintiff, **JAHMEL MONTAGUE**, not to be deprived of life, liberty or property without due process of law, and the right to the equal protection of the laws secured by the Fourteenth Amendment to the Constitution of the United States.

55. That, the deprivation of plaintiff's Constitutional rights was the result of the unconstitutional acts of defendant while acting under color of state law and within the scope of his employ.

56. That, the deprivation of plaintiff's Constitutional rights was the result of the defendant, **THE CITY'S**

custom and/or policy of arresting individuals without probable cause.

57. That, the deprivation of plaintiff's Constitutional rights was the result of the defendant, **THE CITY's** custom and/or policy of arresting minorities without probable cause.

58. That, the deprivation of plaintiff, **JAHMEL MONTAGUE** Constitutional Rights was the result of the defendant, **THE CITY's** custom and/or policy of failing to discipline officers for arresting individuals without probable cause.

59. That, the said customs and/or policies may be inferred from the existence of other similar Civil Rights actions that have been brought against the defendant, **THE CITY**.

60. That the detaining of plaintiff, **JAHMEL MONTAGUE** without probable cause or justification was the result of customs and/or policies adopted by the defendant, **THE CITY**.

61. That the deprivation of plaintiff, **JAHMEL MONTAGUE'S** Constitutional rights was the result of the defendant, **LAWRENCE's** arrest of the plaintiff **JAHMEL MONTAGUE** without probable cause.

62. That the deprivation of plaintiff, **JAHMEL MONTAGUE'S** Constitutional rights was the result of the defendant, **DOES'** arrest of the plaintiff, **JAHMEL MONTAGUE** without probable cause.

63. That the deprivation of plaintiff **JAHMEL**

MONTAGUE'S Constitutional Rights was a result of the defendant, **THE CITY's** custom and policy in failing to discipline officers for the use of excessive force.

64. That the deprivation of plaintiff, **JAHMEL MONTAGUE'S** Constitutional rights was the result of the defendant, **LAWRENCE's** use of excessive force.

65. That the deprivation of plaintiff, **JAHMEL MONTAGUE'S** Constitutional rights was the result of the defendant, **DOES'** use of excessive force.

66. That the customs and/or policies adopted by the defendant, **THE CITY** exhibited a deliberate indifference to the Constitutional rights of plaintiff, **JAHMEL MONTAGUE**.

67. That by reason of the allegations as set forth in all of the aforementioned causes of actions, including, but not limited to the plaintiff's false arrest, false imprisonment, assault and battery, of the defendant and/or defendants, in the negligent hiring, negligent retention, and negligent training of its various employees and/or police officers, the plaintiff, **JAHMEL MONTAGUE** was caused to have his civil rights as guaranteed under the U.S. Constitution, including, but not limited to the Fourth, Fifth and Fourteenth Amendments, violated by the defendant and/or defendants herein, as set forth under 42 U.S.C. Section 1983.

68. That, by reason of the foregoing, the plaintiff **JAHMEL MONTAGUE** was injured; was rendered sick, sore, lame and disabled; was and/or will be caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and upon information and belief, his injuries are permanent in nature and effect.

69. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

70. That, by reason of the foregoing, the plaintiff, **JAHMEL MONTAGUE**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A FIFTH CAUSE OF ACTION

(Negligent Infliction
of Emotional Distress)

71. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 70 with the same force and effect as if more fully set forth at length herein.

72. By the actions described herein, defendants, each

acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff, **JAHMEL MONTAGUE**. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

73. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

74. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

75. Defendants were at all times agents, servants, and employees acting within the scope of their employment by **THE CITY**, which are therefore responsible for their conduct.

76. **THE CITY**, as the employer of the police officer defendants, is responsible for their wrongdoing under the doctrine *respondeat superior*.

77. That, by reason of the foregoing, the plaintiff, **JAHMEL MONTAGUE**, was injured; was rendered sick, sore, lame and disabled; was, and/or will be caused to undergo medical treatment

and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

78. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

79. That, by reason of the foregoing, the plaintiff, **JAHMEL MONTAGUE**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A SIXTH CAUSE OF ACTION

(Intentional Infliction
of Emotional Distress)

80. That the plaintiff, **JAHMEL MONTAGUE**, Repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 79 with the same force and effect as if hereinafter more fully set forth at length herein.

81. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which intentionally caused severe emotional distress to plaintiff, **JAHMEL MONTAGUE**. The acts and conduct of

the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

82. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

83. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

84. Defendants were at all times agents, servants, and employees acting within the scope of their employment by **THE CITY**, which are therefore responsible for their conduct.

85. **THE CITY**, as the employer of the police officer defendants, is responsible for their wrongdoing under the doctrine *respondeat superior*.

86. That, by reason of the foregoing, the plaintiff, **JAHMEL MONTAGUE**, was injured; was rendered sick, sore, lame and disabled; was and/or will be caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

87. That this action falls within one or more of the

exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

88. That, by reason of the foregoing, the plaintiff, **JAHMEL MONTAGUE**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR AN SEVENTH CAUSE OF ACTION

(Failure to Intervene)

89. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 88 with the same force and effect as if more fully set forth at length herein.

90. That the defendants that did not physically touch plaintiff, but were present when other officers violated plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of the plaintiff, whose constitutional rights were being violated in their presence by other officers.

91. Defendants failed to intervene to prevent the unlawful conduct described herein.

92. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

93. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

94. Defendants were at all times agents, servants, and employees acting within the scope of their employment by **THE CITY**, which are therefore responsible for their conduct.

95. **THE CITY**, as the employer of the police officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

96. That, by reason of the foregoing, the plaintiff, **JAHMEL MONTAGUE**, was injured; was rendered sick, sore, lame and disabled; and/or will be was caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

97. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

98. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

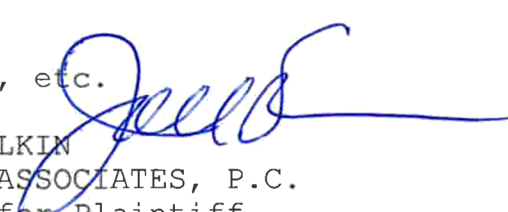
99. That, by reason of the foregoing, the plaintiff,

JAHMEL MONTAGUE, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

WHEREFORE, plaintiff, **JAHMEL MONTAGUE**, demands judgment against the defendants, on the First, Second, Third, Fourth, Fifth, Sixth, and Seventh of actions in an amount in excess of the jurisdictional limits of all of the lower Courts of the State of New York; together with interest, as well as the costs, disbursements and legal fees pursuant to 42 U.S.C. Section 1988, of these causes of action.

Dated: Mineola, New York
February 12, 2024

Yours, etc.



JOEL SCHMELKIN
SCHMELKIN ASSOCIATES, P.C.
Attorneys for Plaintiff,
JAHMEL MONTAGUE
Office & P.O. Address
344 Willis Avenue
Mineola, New York 11501
(212) 227-8865
(516) 696-8865

ATTORNEY'S VERIFICATION

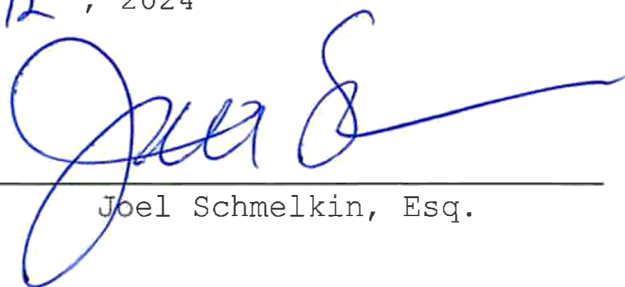
STATE OF NEW YORK)
) ss.:
COUNTY OF NASSAU)

Joel Schmelkin, an attorney admitted to practice law in the State of New York, states, the following:

I am a member of the law firm of Schmelkin Associates, P.C., the attorneys of record for the plaintiff in the within action. I have read the foregoing **COMPLAINT** and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief and that as to those matters, I believe it to be true. This verification is made by me and not by the plaintiff because the plaintiff does not reside in the County where Schmelkin Associates, P.C. maintains its office.

The grounds of my belief as to all matters not stated upon my knowledge are conversations with plaintiff and contents of the file maintained by Schmelkin Associates, P.C.

Dated: Mineola, New York
February 12, 2024



Joel Schmelkin, Esq.

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Index No. Year 20

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

JAHMEL MONTAGUE,

Plaintiff,

-against-

THE CITY OF NEW YORK, P.O. LAWRENCE and “JOHN DOES 1-5,”
identity unknown,

Defendant.

SUMMONS AND VERIFIED COMPLAINT

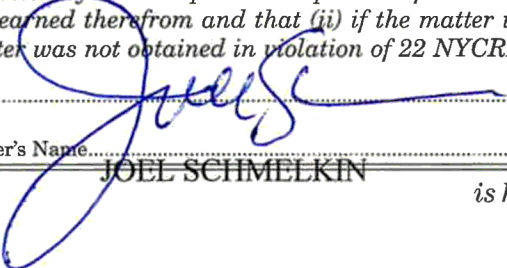
SCHMELKIN ASSOCIATES, P.C.

Attorneys for Plaintiff(s) *Jahmel Montague*

Office and Post Office Address, Telephone
344 WILLIS AVENUE
MINEOLA, NY 11501
(212) 227-8865
(516) 696-8865

Pursuant to 22 NYCRR 130-1.1-a, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, (1) the contentions contained in the annexed document are not frivolous and that (2) if the annexed document is an initiating pleading, (i) the matter was not obtained through illegal conduct, or that if it was, the attorney or other persons responsible for the illegal conduct are not participating in the matter or sharing in any fee earned therefrom and that (ii) if the matter involves potential claims for personal injury or wrongful death, the matter was not obtained in violation of 22 NYCRR 1200.41-a.

Dated: February 12, 2024

Signature 

Print Signer's Name JOEL SCHMELKIN

Service of a copy of the within

is hereby admitted.

Dated:

Attorney(s) for

PLEASE TAKE NOTICE

Check Applicable Box

☐ NOTICE OF ENTRY that the within is a (certified) true copy of a
entered in the office of the clerk of the within-named Court on 20

☐ NOTICE OF SETTLEMENT that an Order of which the within is a true copy will be presented for settlement to the
Hon. , one of the judges of the within-named Court,
at
on 20 , at M.

Dated:

SCHMELKIN ASSOCIATES, P.C.

Attorneys for Plaintiff(s)

To:

Office and Post Office Address, Telephone
344 WILLIS AVENUE
MINEOLA, NY 11501
(212) 227-8865
(516) 696-8865

Attorney(s) for